

called the Tehrik-e-Nifaz-e-Shariat-e-Mohammadi (TNSM) or the 'Movement for the Enforcement of Shariah Law'. According to the announcement, the Government has agreed to abrogate all laws not in conformity with Islam in Malakand Division, of which Swat is a part, and bring in a system of justice that complies with the long-term demands of the TNSM and its leader Sufi Mohammad, in return for their help in bringing peace to the region. This institutionalisation of extremist influence is worrying for India, particularly so in the post-Mumbai environment and the more recent al-Qaeda threat of war. NATO too fears Swat may

Frontier Province as "political engagement", and have made clear that he will not sign its enforcement until peace returns to Swat Valley. "It is in no way a sign of the state's weakness," says Minister of Information and Broadcasting Sherry Rehman. "The will of the population of the Swat region is at the centre of all efforts and it should be taken into account while debating the merits of this agreement."

But there is no doubt that the agreement constitutes capitulation to extremist forces. Despite weeks of renewed military operations this year, the militants had only gained in strength, and with over 1,000 civilians

in particular the ANP leadership which brokered the agreement, saying that it had lost the position of strength the army had put it in by May last year and had in fact surrendered to the militants "out of fear". More than 100 leaders of the ANP have been killed by militants and almost all of its leadership in Swat has fled to Peshawar or Islamabad.

Swat—a part of the 'settled areas' of the country as opposed to the autonomous tribal agencies—was governed until 1994 as a PATA region, or Provincially Administered Tribal Area, with the archaic Frontier Crimes Regulations (FCR) imposed by the British. In February 1994, the Supreme Court of Pakistan struck down the FCR regulations. The legal vacuum created by the order led to calls for enforcement of the Shariah law in the region, particularly from hitherto unknown Maulana Sufi Mohammad's TNSM. Benazir Bhutto's government sought to placate the TNSM and the Talibanisation of the area gained in strength.

The Taliban's rise to power in Afghanistan in 1996 enormously bolstered the TNSM. After the US invasion of Afghanistan in October 2001, Sufi Mohammad raised a 'lashkar' of thousands of young men, and crossed into Afghanistan to fight alongside the Taliban. Most of these men were either killed in US bombing or captured by

AFP Photo/MASSOUD HOSSAINI



PAKISTAN PRESIDENT
ASIF ALI ZARDARI

AFP Photo



A FILE PHOTO OF MAULANA
SUFU MOHAMMAD

THE PAKISTAN ARMY IS UNHAPPY WITH ZARDARI'S MOVE, CONSIDERING IT A CAPITULATION TO MILITANTS.

become a safe haven for the Taliban fighting in Afghanistan.

In popular perception both within Pakistan and abroad, the Government has surrendered to Islamist forces. The people of Swat and many parts of Pakistan have celebrated the agreement as a positive step simply because it promises to return some form of normalcy to the area. President Asif Ali Zardari's spokespersons have defended the agreement reached by the Government of North-West

having lost their lives, the collateral damage from the war was becoming difficult to defend politically. Even Zardari had recently dubbed the fight as one "for the survival of Pakistan". In an interview to a US television network he said, "(The Taliban) do have a presence in huge amounts of land on our side. It's been happening over time and it's happened out of denial. Everybody was in denial."

Highly placed sources within the armed forces, off-the-record, criticised

the Northern Alliance and subsequently tortured and traded for ransom. Sufi Mohammad returned a broken man, and was arrested, convicted for terrorism and crossing illegally into Afghanistan and jailed for 10 years. General Pervez Musharraf subsequently banned the TNSM in January 2002.

This is when Sufi Mohammad's son-in-law, Fazlullah, stepped into the picture and took over the banned TNSM. Eventually, his virulent exhortations to